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Opposition to District Stay

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 44 — Filed March 31, 2026

Rhea Calder opposes Cinder Lake's emergency motion to stay production pending a proposed mandamus petition. The Court twice considered the disclosure issue, and the existing protective order restricts use of the materials. Calder asks that the 5:00 p.m. April 1 deadline remain.

This opposition addresses only a district stay. It does not predict how the court of appeals will process any original proceeding.

Likelihood of Success

Calder argues mandamus is extraordinary and Cinder Lake cannot show a clear and indisputable right. The district order interprets the linked reference to outside counsel, announced conclusion, and remediation as disclosure of the investigation's essential assessment.

At minimum, Calder says that conclusion is debatable rather than plainly unlawful. The unpublished, nonprecedential Fluor disposition does not bind this Court and arose on its own record.

Claimed Injury and Protective Order

Calder acknowledges that disclosure cannot be literally undone, but argues the January 9 order prevents broader dissemination and later waiver. She contends courts routinely manage confidential discovery without treating party access as irreparable in every privilege dispute.

Cinder Lake responds elsewhere that secrecy between litigation adversaries is the protected interest. Calder says the Court has already determined that interest was waived as to the ordered subject.

Delay, Discovery, and Public Interest

The requested stay has no fixed endpoint and could interrupt discovery concerning a review Cinder Lake has placed at the center of its response narrative. Calder argues prompt production will allow focused depositions and avoid duplicative scheduling.

She agrees that ordinary related discovery remains document specific, but contends the existing files have already been adjudicated. The public interest favors enforcement of considered discovery orders and protection against selective disclosure.

Conclusion and Signature

Calder asks the Court to deny a district stay. If the Court allows Cinder Lake time to seek appellate relief, Calder requests a short definite interval and expedited action rather than an open-ended stay.

Submitted March 31, 2026 by Nina Ashe, fictional counsel for Rhea Calder. Service was made through the synthetic civil-filing channel.